
THE NCA HUB

Strategic Exam Preparation for Internationally Qualified Lawyers

◆ FREE SAMPLE CHAPTER ◆

CRIMINAL LAW

Topics 1 & 2: Sources of Criminal Law & The Charter

*This is a free sample from the full NCA Hub strategic notes bundle.
The complete notes cover all exam topics with IRAC frameworks,
IF → THEN trigger tables, decision trees, and EXAM TRAP warnings.*

thencahub.com · hello@thencahub.com

© 2026 The NCA Hub. All rights reserved. Not for redistribution.

How to Use These Notes

These Strategic Notes provide comprehensive, exam-focused coverage of every testable topic on the NCA Canadian Criminal Law syllabus (Revised June 2024). They function as your primary open-book reference during the examination and your structured revision tool in the weeks leading up to the exam.

Three-Step Study Method

Step 1 — READ: Work through each topic here alongside the corresponding Roach/Coughlan chapters and the Code provisions. Use these notes to identify the key issue, rule, and application points examiners test.

Step 2 — RECALL: Cover the notes. Attempt to state: the rule, the leading case and ratio, and how you would apply it to a hypothetical fact pattern. If you cannot, re-read and retry.

Step 3 — TAB: Print and tab your copy by Part. Every rule should be findable within 30 seconds. Highlight EXAM APPLICATION boxes — they tell you exactly what to write under exam conditions.

Master Exam Framework — Apply to Every Problem Question

Apply this 8-step sequence to every criminal law problem question. The NCA marking rubric rewards structured analysis, not stream-of-consciousness description. Candidates who follow a structured approach consistently outperform those who identify issues but fail to connect law to facts.

Topic 1: Sources of Criminal Law Overview

Criminal offences in Canada are exclusively statutory. The criminal law power belongs to Parliament under s.91(27) of the Constitution Act, 1867. The common law cannot create new offences — any conduct criminal only at common law was abrogated by s.9 CC. The only surviving common law 'offence' is contempt of court, expressly preserved.

However, the common law continues to create and develop defences (preserved by s.8(3) CC).

The Principle of Legality

No person may be convicted of a criminal offence unless the conduct was defined as an offence by law in advance of the conduct. This principle has three components:

Nullum crimen sine lege — no crime without law. S.9 CC abolishes common law offences.

Nulla poena sine lege — no punishment without law. The penalty must be prescribed before the act.

Void for vagueness — a provision so vague that it does not give fair notice or limits discretion is unconstitutional (Canadian Foundation 2004).

Key Code Provisions

Common Law vs. Statutory Offences

Leading Cases

Topic 2: Constitutional Division of Powers & The Charter

The Criminal Law Power — s.91(27)

Only the federal government can create 'true crimes.' The test from Malmo-Levine: (1) a prohibition; (2) a penalty; and (3) a 'criminal law purpose' (public peace, order, security, health, morality — list not exhaustive). Provinces cannot create criminal offences but can regulate conduct under s.92(14), creating regulatory offences.

The Section 1 Oakes Test — Full Analysis

When Parliament infringes a Charter right, s.1 can justify the limit if it is 'prescribed by law' and 'demonstrably justified in a free and democratic society.' The government bears the entire burden of justification at every step. Failure at any single step = provision not saved.

Charter as an Interpretive Tool

Beyond its role as a rights guarantee, the Charter operates as an interpretive framework for statutory construction. Courts presume Parliament legislates constitutionally. Where two interpretations of a provision are possible — one constitutional, one not — courts choose the constitutional reading. This Charter-consistent interpretation tool has transformed substantive criminal law concepts (Labaye 2005).

Leading Cases

Topic 3: Classification of Offences

Three Categories

Hybrid Offences

For hybrid offences, the Crown elects to proceed summarily or by indictment. Until the Crown elects, the offence is treated as indictable for most procedural purposes (s.34(1) (a) Interpretation Act). The Crown's election is final and largely unreviewable. Most sexual assault offences (ss.271-273) and theft (s.334) are hybrid.

Mode of Trial for Indictable Offences

Topic 4: Interpreting Criminal Provisions

The Modern Purposive Approach

The Supreme Court has moved away from strict construction to purposive interpretation. The modern Driedger approach: read legislative language in its ordinary sense, harmoniously with the rest of the statute, and consistent with the scheme, object, and intention of Parliament. Courts read language broadly when a broad reading advances the provision's purpose, narrowly when narrow advances it. Strict construction is a

residual principle only — applied where two purposively equal interpretations exist, to resolve ambiguity in favour of the accused.

Four Interpretive Tools

Void for Vagueness — Canadian Foundation Test

A criminal provision that fails to give fair notice or that fails to limit enforcement discretion is unconstitutionally vague (s.7 Charter — principles of fundamental justice). The test (Canadian Foundation 2004): (1) does the provision provide fair notice to citizens of what is prohibited? (2) does it limit enforcement discretion to prevent arbitrary application? If both are answered yes, the provision is not void for vagueness — even if imprecise in some applications.

Section 43 CC: provides a limited defence for use of corrective force by parents and teachers. The force must be: (1) for corrective purposes; (2) applied to children between 2 and 12 years old (for teachers — reasonable for context); (3) minor in nature; (4) not cause bodily harm. Canadian Foundation upheld s.43 as not unconstitutionally vague despite broad language.

Leading Cases

Every criminal offence requires proof of two categories of elements: (1) actus reus — the physical/external elements; and (2) mens rea — the mental/fault elements. The contemporaneity principle requires both to co-exist at the same time. If actus reus and mens rea do not coincide, there is no offence (Miller [1983] for continuing acts). The fault element is constitutionally significant: offences carrying special stigma (murder, attempted murder, sexual assault causing bodily harm) have constitutionally minimum fault requirements.